

26VECV01255 26VECV01255

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-07-16

Motion: DEFENDANT FM RESTAURANTS HQ LLC'S MOTION TO COMPEL ARBIRATION AND STAY PROCEEDINGS

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Case Number: 26VECV01255 Hearing Date: July 16, 2026 Dept: NWI

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

ROSA
MARQUEZ, an individual;

Plaintiff,

vs.

FM RESTAURANTS HQ LLC, a Delaware limited liability
company; EDUARDO MUNOZ, an individual; and DOES 1-100, inclusive;

Defendant.

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CASE

NO: 26VECV01255

[TENTATIVE]

ORDER RE: DEFENDANT FM RESTAURANTS HQ LLC'S MOTION TO COMPEL ARBIRATION AND
STAY PROCEEDINGS

DEPT.

I

HEARING

DATE: JULY 16, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: MARCH 3, 2026

TRIAL

DATE: NONE

I.

BACKGROUND

On March 3, 2026,

Plaintiff Rosa Marquez ("Plaintiff") filed a complaint against Defendants FM Restaurants HQ LLC ("FM Restaurants"), Eduardo Munoz ("Munoz"), and Does 1 to 100 alleging seven causes of action: (1) failure to pay overtime compensation; (2) failure to pay minimum wage; (3) failure to provide meal periods; (4) failure to provide rest breaks; (5) failure to pay wages due upon termination; (6) failure to issue accurate and itemized wage statements; and (7) unlawful business practices.

On June 8, 2026,

FM Restaurants filed the instant motion to compel arbitration.

On July 2, 2026,

Plaintiff filed her opposition.

On July 9, 2026,

FM Restaurants filed its reply.

II.

LEGAL STANDARD

In

deciding a motion to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties and then determine the second gateway issue of whether the claims are covered within the scope of the agreement. (See *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) (See also *Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F. 3d 1126, 1130 ["The court's role under the [Federal Arbitration Act ("FAA")] is therefore limited to determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue."]. "The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Engalla v. Permanente Medical Group, Inc.* (1997) 64 Cal.Rptr.2d 903, 915-16.) "In

these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Id. at 916.) No jury trial is available for a petition to compel arbitration. (Ibid.)

Accordingly, under both the FAA and California Law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (Winter v. Window Fashions Professions, Inc. (2008) 166 Cal.App.4th 943, 947.)

III. DISCUSSION

Evidentiary Objections

As a preliminary matter, FM Restaurants's July 9, 2026, evidentiary objection to the declaration of Rosa Marquez ("Marquez") is sustained since Marquez declares that she is a native Spanish speaker, not fluent in English, and the declaration fails to include a certified translation. (See Marquez Decl. at ¶¶ 1 and 3-4; see also Fonseca v. Halol (C.D. Cal 2008) 568 F.Supp.2d 1110, 1125.)

Existence of a Valid Arbitration Agreement

FM

Restaurants proves the existence of a valid arbitration agreement with Plaintiff.

Plaintiff's

claims arise from her employment with FM Restaurants and FM Restaurants's alleged failure to pay her wages owed. (Complaint at ¶¶ 9-14.) On November 19, 2018, Plaintiff was presented with a written document entitled, in bolded and underlined text, "Agreement for Individual Arbitration of Covered Disputes and Related Provisions." (See Franklin Decl. Exh. 1)(hereinafter the "Agreement"). The Agreement provides that the parties:

“
... mutually agree that any and all covered disputes (as defined below) that either party

has
the legal right to sue for in court shall be subject to final and binding
arbitration under

the
arbitration provisions set forth below and not decided by a court or jury . . .
The term

'covered
disputes' is defined to mean disputes and claims . . . arising out of or
related in

any
manner to your employment with [FM Restaurants] or any predecessor employer,

arising
under or related to this Agreement, or arising under any federal or state
statutes

and
laws, municipal ordinances, executive orders, contracts, civil wrongs, or
common

law
. . . including but not limited to any and all types of claims regarding wages,
wage

payments,
wage notices, meal times, working conditions, accommodations,

discrimination,
labor relations, retaliation, whistleblowing, employee benefits, expense

reimbursement,
termination pay, fringe benefits, paid time off, payroll taxes . . ."

(Franklin Decl. Exh. 1.)

In

opposition, Plaintiff first argues that “Plaintiff created a factual dispute about the validity of the arbitration agreement by submitting a declaration denying that she agreed to arbitrate any of her claims with [FM Restaurants].” (Opposition at 4:25-27.) However, as discussed supra, Marquez’s declaration is inadmissible.

Next,

Plaintiff argues that the Agreement is unenforceable due to unconscionability. Specifically, Plaintiff argues the contract was provided on a “take it or leave it basis.” (Opposition at 8:19-5 [citing *Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114.]) “When an employee is required to consent to arbitration as a condition of employment with no opportunity to negotiate, the agreement is procedurally unconscionable.” (*Armendariz*, supra, 24 Cal.4th at 114-115.) As previously discussed, the Agreement is in English and Plaintiff is a native Spanish speaker. (See discussion supra at 2:24-3:4.)

In

Nunez v. Cycad Mgmt. LLC (2022) 77 Cal.App.5th 276, the Court held that the employer’s failure to provide a Spanish-speaking gardener with a Spanish version of the arbitration agreement “demonstrated oppression and surprise amounting to procedural unconscionability,” specifically because the employer knew the employee was not proficient in English, did not explain the arbitration agreement, and handed the employee the agreement without allowing ample time to review, ask questions, or obtain a translation. (*Nunez*, supra, 77 Cal.App.5th at 284.) Similarly, in *Subcontracting Concepts (CT) LLC v. De Malo* (2019) 34 Cal.App.5th 201, the Court found unconscionability when the employee was not fluent enough in English to understand the arbitration agreement, was not told what arbitration meant, and was told he had to sign for employment. (*Subcontracting Concepts (CT) LLC*, supra, 34 Cal.App.5th at 206.) Similarly, here, Plaintiff has worked with FM Restaurants since 1999 (see Motion at 2:19-3:3) and FM Restaurants’s agents only spoke to Plaintiff in Spanish. (*Ibid.*) FM Restaurants was aware of Plaintiff’s inability to speak or understand English. (*Ibid.*) Accordingly, pursuant to *Nunez* and *Subcontracting Concepts*, the arbitration agreement is unenforceable as unconscionable.

III. CONCLUSION

Based

on the foregoing, the instant motion to compel arbitration is DENIED.

Moving
party to give notice.

Dated: July
_____, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court